

Contracts
Kolodziej v. Mason
774 F.3d 736 (2014)

Keyword Subject

Breach of Contract, Unilateral Contract

Facts

The defendant (James Mason) was a defense attorney defending a high-profile client accused of quadruple homicide. The case relied on the client having made it off of an airplane and arriving back at a specific hotel 28 minutes later. In expressing his incredulity at this possibility, the defendant said in an NBC interview that "if anyone could give him evidence that this was possible he would give them \$1,000,000". The plaintiff (Kolodziej), then a law student, saw this interview and decided to take it as a challenge. Based on the information he had about the case, he attempted the feat and then sent proof to defendant.

Procedural History

Trial Court: In favor of defendant

Appeal: In favor of defendant

Issue

Holding:

Principle

Spoken words, particularly when said hyperbolically or in such a way that a reasonable person would interpret them as such, cannot be enforced

Reasoning

Separate Opinions

Notes